

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

COMPLAINANTS' MOTION FOR CONFIDENTIAL TREATMENT

Complainant, Baltic Auto Shipping, Inc. ("Baltic"), by and through its attorney, Marcus A. Nussbaum, Esq., hereby moves for an Order, pursuant to Rule 201 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.201 for confidential treatment of Complainant's Reply To Respondents' Petition Regarding Attorney Fees And Request For An Evidentiary Hearing and Certification of Marcus A. Nussbaum.

**COMPLAINANTS HAVE DEMONSTRATED GOOD CAUSE FOR THE
CONFIDENTIAL TREATMENT OF THE REPLY AND CERTIFICATION**

The Commission may recall that on September 2, 2016, complainant filed a similar motion for confidential treatment which was granted pursuant to the Commission's Memorandum Opinion and Order of January 5, 2017. The instant motion has been interposed for the very same reasons and is based upon the same documents that were at issue in the September 2, 2016 motion.

It is therefore respectfully submitted that complainant has demonstrated the requisite good cause necessary to justify confidential treatment of the Complainants' Reply To Respondents'

Petition Regarding Attorney Fees And Request For An Evidentiary Hearing and Certification, in that the Settlement Agreement which is the subject of the Reply has a confidentiality clause that prohibits the disclosure of same to the public.

In order to abide with the obligations of the parties herein arising out of said confidentiality clause, complainant has redacted from the public version of its Reply the citations to specific language in the Settlement Agreement. Additionally, complainant has omitted references to the Settlement Agreement from the public version of the Certification.

WHEREFORE, based upon the foregoing, it is respectfully requested that the Commission deem confidential the Complainants' Reply To Respondents' Petition Regarding Attorney Fees And Request For An Evidentiary Hearing and Certification, together with such other and further relief as may be just and proper under the circumstances.

Dated: August 22, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainant

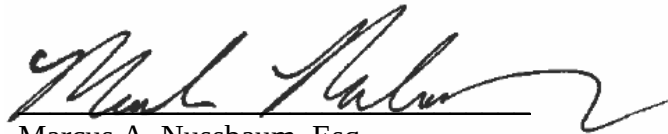
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR CONFIDENTIAL TREATMENT** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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Dated: Brooklyn, New York
August 22, 2017